

HOUSE JOINT RESOLUTION 847

By Faison

A RESOLUTION to affirm the importance of religious liberty protections for incarcerated individuals under the Religious Land Use and Institutionalized Persons Act of 2000 (RLUIPA) and to recognize the contributions of Prison Fellowship.

WHEREAS, the First Amendment to the United States Constitution guarantees the free exercise of religion, and these protections do not end at the prison gate; and

WHEREAS, the Religious Land Use and Institutionalized Persons Act of 2000 (RLUIPA) ensures that individuals in prison jails and other institutions receiving federal funds are not subjected to unjustified burdens on their religious exercises; and

WHEREAS, the RLUIPA, now in its twenty-fifth year, affirms the fundamental right of individuals who are incarcerated to freely exercise their faith while in custody; and

WHEREAS, under the RLUIPA, governments may not impose a substantial burden on an incarcerated individual's religious exercise unless they can demonstrate that it furthers a compelling governmental interest and is the least restrictive means of doing so; and

WHEREAS, the Supreme Court has consistently upheld the RLUIPA's constitutionality and importance in cases, including *Cutter v. Wilkinson* (2005), *Holt v. Hobbs* (2015), *Dunn v. Smith* (2021), and *Ramirez v. Collier* (2022), reaffirming that religious liberty protections extend to incarcerated persons; and

WHEREAS, faith practice in correctional settings fosters personal accountability, improved mental health, and successful reentry into society, thereby promoting safer prisons and reducing recidivism; and

WHEREAS, Prison Fellowship, founded in 1976 by the late Charles Colson following his personal conversion and strengthened faith during his incarceration, has championed the

religious liberty of incarcerated individuals and actively supported the adoption and defense of the RLUIPA; and

WHEREAS, Prison Fellowship is the nation's largest Christian nonprofit serving prisoners, former prisoners, and their families, annually reaching more than 600,000 individuals and supported by more than 200,000 volunteers nationwide; and

WHEREAS, evaluations of Prison Fellowship's Academy program by the Texas Department of Criminal Justice, Baylor University, and the Minnesota Department of Corrections have shown significant reductions in recidivism—over sixty percent of program participants—demonstrating the power of faith-informed programming to transform lives; and

WHEREAS, Prison Fellowship currently operates its Prison Fellowship Grow program at the Debra K. Johnson Rehabilitation Center to nurture communities where women behind bars can explore and practice human flourishing within the framework of the Christian story; and

WHEREAS, Prison Fellowship currently serves children with an incarcerated parent each year through partnering with local churches to provide Angel Tree gifts at Christmas, including serving 4,488 children in 2024; and

WHEREAS, Prison Fellowship will mark its fiftieth anniversary in 2026, continuing its mission to seek justice, love, mercy, and restore hope for men and women behind bars, and to ensure robust opportunities for religious practice within prisons; now, therefore,

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that we affirm our strong support for the protections for incarcerated individuals guaranteed under the Religious Land Use and Institutionalized Persons Act of 2000.

BE IT FURTHER RESOLVED, that we recognize the importance of safeguarding the religious exercise of all incarcerated individuals, regardless of faith tradition, as essential to rehabilitation, constitutional fidelity, and public safety.

BE IT FURTHER RESOLVED, that we honor Prison Fellowship on the occasion of its fiftieth anniversary and commend its decades of service in advancing restoration, rehabilitation, and second chances through faith-based programs.

BE IT FURTHER RESOLVED, that we encourage correctional agencies within Tennessee to continue policies and practices consistent with both the letter and spirit of protections for incarcerated individuals under the RLUIPA, supporting access to faith-based and volunteer-led programs for those who seek them.

BE IT FURTHER RESOLVED, that a certified copy of this resolution be transmitted to Governor Bill Lee, the Commissioner of the Tennessee Department of Correction, and each member of the Tennessee Congressional delegation.